EMUNOT VEDEOT: SAADIAH GAON'S BOOK OF BELIEFS AND OPINIONS

Can the Torah Be Abrogated?

Emunot VeDeot, Essay 3:7-8

Sefer: Emunot VeDeot (The Book of Beliefs and Opinions) by Rav Saadia Gaon

Essay/Chapters: Essay 3 (Commandment and Prohibition), Chapter 7 and the opening of Chapter 8

Shiur: Part of Dayan Daniel Kada's Monday series on Emunot VeDeot, Monday 7 October 2024, on Zoom (an early shiur, on the anniversary of 7 October and the week of Yom Kippur)

These notes are based on an automatic transcript of the recording.

Recap: Essay 3 So Far

Chapters	Theme
1-3	**Rational and revelatory mitzvot**, with reasons for some of each. Even the rational ones needed the Torah, **to give a framework**: adultery is wrong, but what constitutes a married woman?
4	Prophecy is **verified through miracles and wonders**, and prophets are **regular, ordinary people** who had occasional prophecy, which is not how the Rambam and others understood it
5	The prophet knows he is prophesying by **a physical manifestation**: a pillar, a cloud. The Egyptian magicians managed three wonders, but the Torah tells us it was only ***achizat einayim***, sleight of hand, in limited spaces. And **Yonah**: "When we read Yonah this Shabbat, on Yom Kippur, bear in mind" that he did what he was told and fled only before he would be sent a second time
6	Tanach has a threefold structure: **command, consequence and narrative**. The classic example, again from Yom Kippur, is Acharei Mot: do not enter the Holy of Holies (the command), so that you do not die (the consequence), as Aharon's sons died (the narrative). And **the tradition**: we live by what others tell us, and the Torah was received by so many people with such incredible claims that it must be true

Chapters 7 to 10: one topic

The essay has covered the categories of mitzvot, prophecy and how prophets are verified, and the structure of the prophets' writings. The last topic, spread over four chapters, is **the abrogation of prophecy**. We received the Torah of Moshe, but perhaps it will be changed, "as many have claimed throughout the generations": **the Christians**, who claimed Jesus brought a new prophecy, and **the Muslims**, who claimed it of Muhammad. The claim is that the Torah changes and adapts to the times. "We're going to go through them fast."

Part 1: Chapter 7, Tradition and Verses

A reliable tradition

Saadia opens: the nation has **a complete and reliable tradition** that the mitzvot of the Torah **will never be changed**, and they said they heard this explicitly, to rule out any opposing belief. By tradition he means **Chazal**: we do have such statements in the Hachamim.

The proofs from the verses

Saadia then looked for proofs of this tradition and found several:

1. **"For your generations."** Many mitzvot are commanded **לדורותיכם**, which he understands to mean in perpetuity.
2. **"A heritage."**

תורה צוה לנו משה מורשה קהלת יעקב

Moshe commanded us the Torah, a heritage for the congregation of Yaakov. (Devarim 33:4)

The Rabbi explained the word. It does not say ***yerushah***, an inheritance, which is received passively. It says ***morashah***, a bequest: something you receive **with a duty to pass it on**, as the Gemara draws out. The Torah was inherited and will be bequeathed, which implies **the same Torah** continuing from generation to generation.

1. **"Our nation is only a nation through its Torah."** This is the famous line, quoted many times after Saadia:

כי אומתנו אינה אומה כי אם בתורותיה

Our nation is only a nation through its Torahs.

And Hashem promises in Yirmiyahu that Israel will exist **as long as heaven and earth**: just as I have set the sun, the moon and the stars, if these laws cease, only then will the seed of Israel cease to be a nation. So: Israel lasts as long as heaven and earth; Israel is only a nation through its Torah; **therefore the Torah lasts as long as heaven and earth.**

1. **The last words of the prophets.**

זכרו תורת משה עבדי... הנה אנכי שלח לכם את אליה הנביא

Remember the Torah of Moshe My servant... behold, I am sending you Eliyahu the prophet. (Malachi 3:22-23)

The final verses of the Nevi'im: remember and perform the Torah of Moshe **until the end of days**, when Eliyahu comes.

The Rabbi added that in the original Saadia also brings **חקת עולם**, "an eternal statute," a phrase the Torah uses often. "They missed it out here," in the edition on the screen.

The context of the Yirmiyahu verse

"You have to see the context." Saadia is clearly referring to **the famous Christian proof text**, which he addresses explicitly a couple of chapters later. Just before the verses he quotes:

הנה ימים באים נאם ה׳ וכרתי את בית ישראל ואת בית יהודה ברית חדשה

Behold, days are coming, says Hashem, when I will make **a new covenant** with the house of Israel and the house of Yehudah. (Yirmiyahu 31)

This "new covenant" was read as **the New Testament**. Saadia's answer later is to read on:

- **Not like the covenant** I made when I took them out of Egypt, **which they broke**.
- Rather, **I will write it on their hearts**: the same Torah, now engraved within them.
- And then: **as long as these laws** of sun, moon and stars endure, so will Israel. So it cannot be that the Torah will be nullified.

"Only a nation through its Torah": a surprising line

The Rabbi noted how this sentence has been used. **Anti-Zionists** quote it often: you cannot have a nation or a state **without religion**, because we are a nation not through our land but through our laws. "Which I find interesting, and honestly surprising and difficult."

- **The land came first.** Long before the covenant of Torah at Sinai (Parashat Yitro), Hashem made **the covenant of the land with Avraham** (Parashat Lech Lecha). From Bereishit onwards, again and again: this land will be yours, as a covenant forever.
- **A possible defence:** that covenant was with Avraham, not the nation. The first covenant with **the nation** was at Har Sinai, and it was for the Torah. "True. But that covenant included, seemingly, the one He made with Avraham."
- **The only support the Rabbi could think of** is the halacha of **conversion**. A convert's essential requirement is ***kabbalat mitzvot***, accepting the mitzvot. There is no acceptance of a land. If someone does not truly accept the laws in his heart, even if he says he does, perhaps it is not a conversion. In that sense our nationhood is defined by the Torah.

"We did have a national identity before we had a religious identity. People forget that."

Part 2: Who Disagreed? Rav Yosef Albo

The Rambam's **ninth principle** is that the Torah will never change. The Rabbi recalled a series on the Thirteen Principles about five or six years ago that discussed it at length. Two issues: **some disagreed**, and **messianic times**.

Albo: "forever" can be limited

Rav Yosef Albo, the Spanish philosopher of about 600 years ago, in **Sefer HaIkkarim, Ma'amar 3, chapters 13 to 23**, argues with Saadia and the Rambam. He agrees the Torah is eternal **in practice**, but not that it is **impossible** for it to change.

> **עולם** can mean a limited time. The Hebrew servant whose ear is pierced will "serve forever," and the Gemara interprets that as **until the Jubilee year**: forever means the "eternity" of the Yovel. He brings other proofs too, and refutes the verses that seem to make eternity an imperative.

- From chapter 16, the Rabbi read: **I see no evidence or necessity that the immutability of the law should be a fundamental principle**, and nothing to prevent Hashem from adding or diminishing as His wisdom decrees.

Albo's example: meat after Kayin and Hevel

"As it were, Hashem changed the Torah." Adam was only permitted **fruit and vegetation**. Meat was permitted only later. Albo's explanation, which the Rabbi called "a very interesting approach":

1. Humans **need an outlet**, a way to spill blood. With no permission to kill animals, there was no distinction: you could kill neither.
2. Hevel brought **an animal from his flock** and it was accepted. Kayin thought he too would bring a sacrifice of a living creature. **When Kayin killed Hevel, it was in his eyes a sacrifice.** He equated animal and human.
3. So Hashem drew a clear line: **you may kill animals and eat meat; you may not kill humans.** That is why, in the same passage that permits meat, the Torah also forbids murder.

It is like **a doctor** who prescribes one medicine for a time and then, once you are a little better, prescribes another.

Albo's two conditions

How would we know Hashem had prescribed new medicine?

1. A revelation **of the same calibre**: like the first, before 600,000 men between twenty and sixty, about two million people.
2. Through **a prophet greater than Moshe**, "which is almost impossible," since we are told Moshe is the greatest of all prophets.

He is **not** suggesting the Torah was changed by Jesus or Muhammad, "of course not." His point is only theoretical.

	Could the Torah change?
Saadia and the Rambam	**Impossible.** The Torah will never change
Rav Yosef Albo	**In theory**, given a revelation and a prophet at least equal to Sinai and Moshe

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Part 3: Messianic Times

"Now the major issue." Saadia and the Rambam are both forceful that the Torah will exist as long as heaven and earth. But **there are statements in the Hachamim that indicate otherwise**.

- **The Yerushalmi:** in the future **the Prophets and the Writings will be annulled** (but not the Five Books). What that means is debated: the mitzvot in them? Their sanctity?
- **Midrash Tehillim 146**, a more explicit source, brought by Albo against Saadia and the Rambam. Midrash Tehillim is of unclear authorship and not from the time of Chazal, perhaps around 700 CE, "but it is an accepted Midrash, and an authoritative one." Every morning in Pesukei deZimra we say **ה׳ מתיר אסורים**, Hashem **releases the imprisoned**. The Midrash reads it as **"permits the forbidden"**: in messianic times **non-kosher animals will be permitted**, and even the prohibition of ***niddah*** will be lifted. "Which is quite shocking."

"You could argue this is a Midrash with a deeper interpretation; it doesn't mean these things literally." But Albo brought it as a source for his view.

Conclusion of Part 1: In effect, **everyone agrees** the Torah does not change and we do not accept religions that come after it. In theory, Albo allows it; Saadia and the Rambam do not. And there are sources suggesting that in messianic times things may change, whether literally or metaphorically. "We're talking about tiny nuances in very limited things here, nothing of great significance. It's a more theoretical question."

From the class: Purim

A participant asked about the dictum that when Mashiach comes **all the festivals will be annulled except Purim**. The Rabbi said it is in **that same Yerushalmi**. This is why **Shabbetai Tzvi**, "obviously a false Mashiach," ate on Tisha b'Av and engaged in terrible promiscuity, and the **Sabbateans** quoted exactly this Midrash of *matir asurim*. Their excuse was partly Kabbalistic, that to reveal the Messiah one must descend to the depths of impurity to release **the sparks** buried even there, and partly this idea that in the future prohibitions would become permitted. "With that mindset, anything can become permissible."

Why Saadia and the Rambam kept it simple

"I think it's worthwhile dwelling on this for a moment."

- **Saadia** wrote, as we learned at the start of the year, **in response to the people around him**: the confusion of the Jewish people and the religions surrounding them. They were arguing about **the whole Torah** being abrogated.
- **The Rambam's Thirteen Principles**, by the consensus of many, were a response to the **Christian creeds**. We had many beliefs but no creed, so he composed one.
- When you are trying to make things simple and convince people, you keep things general. The Rambam recognised **the dangers of Christianity and Islam**. He knew these Midrashim and the Yerushalmi, but "it's such a small point, it's not worthwhile confusing people with it." Saadia may have had the same mindset.
- **Albo** wanted to address the issue up front, and so he did.

Part 4: Abrogation Is the Wrong Word

Back in Saadia, the second part of Chapter 7 is philosophical: **the concept of abrogation is not possible**. Any commandment must be one of four kinds:

If the law was given…	Then…
1. For eternity	It is for eternity. It cannot be abrogated
2. For a fixed time, say 100 years	During the 100 years it cannot change. After that it **expires**, which is not abrogation
3. For a fixed place, say Egypt or Israel	In that place it holds forever; elsewhere it never applied. Not abrogation
4. For as long as a condition holds, say as long as the Nile flows	When the Nile stops, it lapses. Not abrogation

A fifth possibility: the law was given for a time that **we** cannot know, namely **until the next revelation**. Saadia answers that this too is not abrogation, because **Hashem knows** when that time will be. From His perspective He gave it for, say, 2,000 years.

"Nothing too sharp or convincing. He's just trying to say the word abrogation is not something you need to consider in relation to Torah."

Part 5: Seven Arguments for Abrogation

The rest of the chapter lists **seven philosophical arguments** people made for abrogation (the arguments from verses come in the next chapter, "and those we will do inside, because it's important to see the Pesukim and how different religions interpreted them"). "Some of them, I have to be honest with you, I don't understand. They're so difficult to accept." The Rabbi went through them orally. "As you can see, these arguments are very, very weak. That's why they're interesting."

#	The argument	Saadia's answer
1	**Birth and death.** People are given life and it is taken away; so too the Torah	Hashem gave life **with death in view**, so that we reach **the true life of Olam HaBa**. He did not give the Torah in order to abrogate it. If every law were given in order to be abrogated, there would never be a law
2	**The dead.** When alive they kept the Torah; once dead they don't. So the Torah can lapse	The dead **cannot** keep mitzvot; the living can. You can't compare them
3	**Work and rest.** People work one day and rest the next; perhaps the Torah has periods of "rest"	Humans need rest. Nothing says the Torah cannot be kept at all times; it was given for eternity
4	**Rich and poor.** Fortunes vary; perhaps the Torah applies at some times and not others	Fortunes are **reward or consequence**. The Torah cannot be a reward: the first law was not a reward for anything
5	**Dates change colour**, red then green, and nature changes. "Go with the times"	"This is bizarre, but this is obviously what people used to argue." **Change is the nature of nature.** The Torah need not change
6	**Shabbat.** Before the Torah you could work on the seventh day; then it was forbidden. Perhaps it will change again	Work was **optional**, never a duty. The Torah abrogated nothing by forbidding it. Only if the future demanded that you **must** work on Shabbat would it be comparable
7	**Avraham and Moshe.** There was a Torah of Avraham, then the Torah of Moshe; perhaps a third will come	"The one which has some substance to it." The Torah of Moshe **never abrogated** the Torah of Avraham. It **added** to it

"We're living a thousand years after Saadia. Clearly the arguments were different in those days." Saadia concludes that all of these are **flimsy, weak arguments**.

Part 6: Chapter 8, The Prophet Who Performs Miracles

Saadia now faces a hard question from his own position. In Chapters 4 and 5 he said **prophecy is verified by miracles**. So what if a prophet comes with **real miracles**, a cloud, a pillar, not sleight of hand, and tells you to change the Torah? "Don't forget, this is obviously a response to the alleged miracles of Jesus, all the tales that were told." The Rabbi pointed out that the question can be asked on the Rambam's approach too.

Mark answered from the class: you cannot add and you cannot subtract, so if someone changes something, he may have performed the miracle but he is not a real prophet. The Rabbi agreed that the Torah says such a prophet is to be put to death.

Logic trumps miracles

"This is going to show you how at the forefront of everything about Saadia was his logic and his reason." Prophets are verified by miracles, **yet** if a prophet uses miracles to tell you to commit adultery, "my logic trumps miracles."

Saadia's answer: **we never believed Moshe because of miracles alone.**

1. First the prophet tells us **how to behave**.
2. We hear it, and **it makes sense**.
3. **Then** we ask him for a miracle, and when he performs it, we believe him.
4. If what he says is **nonsense** from the start, **we do not ask for a miracle at all**, "because you don't ask a miracle for the impossible."

The analogy of the court

Claim before the Dayan	Response
Reuven says **Shimon owes me a thousand pounds**	Plausible. "Give me evidence." If he brings witnesses or a contract, Shimon pays
Reuven says **Shimon owes me a river**	Impossible, nobody owns rivers. The Dayan **does not ask for proof**. "Bye."

English law has the same idea: **a vexatious claim** is not accepted in the first place, and the court never asks for evidence. So with prophecy:

- If he says Hashem commands us to **fast on a certain day**, we ask for a miracle, and if we see it, we believe and fast.
- If he says Hashem commanded him to **commit adultery, to steal**, that Hashem will **bring another flood** on the whole world, or that He created heaven and earth **in one year** when the Torah says six days, **we will not ask for a miracle**. It is against **logic or accepted tradition**.

"Miracles are great. Miracles are verification. Miracles, however, will never make us do something which is against the actual words of the Torah, because that goes against all logic. **God will not send miracles to go against logic.**"

Summary

1. **Chapters 7-10** deal with one question: **can the Torah be abrogated?**, against the Christian and Muslim claims of a new revelation.
2. **Tradition and verses:** *ledoroteichem*, *morashah* (a bequest to pass on), "our nation is only a nation through its Torah" with Yirmiyahu's promise, and "Remember the Torah of Moshe" in Malachi. The "new covenant" of Yirmiyahu is **the same Torah written on the heart**.
3. **"Only a nation through its Torah"** is quoted against Zionism, but the covenant of the land with Avraham came before Sinai. Its best support is ***kabbalat mitzvot*** in conversion.

4. **Rav Yosef Albo** holds abrogation is possible **in theory** (*olam* as a limited time; meat after Kayin and Hevel; the doctor's new prescription), given a Sinai-scale revelation and a prophet greater than Moshe. Sources such as the Yerushalmi and **Midrash Tehillim on *matir asurim*** hint at change in messianic times, which the **Sabbateans** abused. Saadia and the Rambam kept it simple for their audience.
5. **Abrogation is the wrong word:** a law is eternal, time-bound, place-bound or conditional, and in none of these is it abrogated.
6. **Seven weak arguments** refuted, the strongest being Avraham to Moshe: **Moshe added, he did not abrogate.**
7. **Chapter 8:** a prophet who works miracles to overturn the Torah is not even asked for proof, like a claim to own a river. **Logic trumps miracles.**

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